

The Court today suggests that petitioner cannot claim any benefit from *Furman* because no death penalty was pending against him at the time of the decision. The 1960 commutation is touted as the panacea for the constitutional defects of petitioner's original sentence. Unfortunately, such is not the case.

The imposition of the death sentence was the indispensable vehicle through which petitioner became subject to his present sentence. The commutation of the sentence did not cure the constitutional disabilities of the punishment. A noted expert on the subject of Presidential clemency states:

"Unlike a pardon, a commutation does not absolve the beneficiary from most of the legal consequences of an offense."⁶

Although petitioner is not under direct threat of the death sentence, "he has suffered and continues to suffer enhanced punishment—the loss of his statutory right to

cable to the military. While the Court divided on the penal nature of the statute which provided additional sanctions for servicemen convicted of wartime desertion, there was no disagreement on the application of the Amendment.

I would also note that the UCMJ, enacted in 1950, has by decision and practice incorporated the Bill of Rights and afforded its protection to the members of the Armed Forces. See, e. g., *United States v. Tempia*, 16 U. S. C. M. A. 629, 634, 37 C. M. R. 249, 254 (1967); *United States v. Jacoby*, 11 U. S. C. M. A. 428, 430-431, 29 C. M. R. 244, 246-247 (1960); *United States v. Jobe*, 10 U. S. C. M. A. 276, 279, 27 C. M. R. 350, 353 (1959).

The fact that a court-martial rather than a jury imposes the death sentence is irrelevant. In my view the penalty is equally severe, and in my view equally offensive to the Eighth Amendment for that reason, see *Furman v. Georgia*, 408 U. S., at 314-374 (MARSHALL, J., concurring). Moreover, the potential for abuse and discrimination with which my Brethren were concerned in *Furman* is as evident here as in the civilian courts.

⁶ W. Humbert, *The Pardoning Power of the President* 27 (1941).